

CHAPTER 26

An Act to enable the Minister of Transport to secure the provision of parking facilities under Hyde Park; and for purposes connected therewith. [22nd June, 1961.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Minister of Transport may grant such interests in and rights over land in Hyde Park, for any term not exceeding ninety-nine years, as appear to him necessary or expedient for securing the provision of facilities for parking vehicles under the authorised area defined in subsection (2) of this section and, in connection therewith, of facilities for fuelling vehicles and such other facilities and services as are, in his opinion, commonly provided in places used mainly for accommodating vehicles by way of trade.

(2) In this Act—

“the authorised area” means the area indicated on the map as the authorised area;

“the inner area” means the part of the authorised area which is indicated on the map as the inner area; and

“the map” means the map laid before Parliament by the Minister of Transport on the twenty-fifth day of January, nineteen hundred and sixty-one.

2.—(1) In exercising his powers under this Act the Minister of Transport shall, subject to subsection (2) of this section, secure that—

- (a) any surface disturbed in the carrying out of any works is after the completion of the works reinstated and made good to the satisfaction of the Minister of Works;
- (b) no works, when completed, protrude above the surface as reinstated;
- (c) no trees are felled or interfered with except with the consent of the Minister of Works.

(2) The Minister of Transport shall not be required to prevent—

- (a) the provision, in the situations respectively indicated on the map, of sloping entrances and exits and of a petrol filling station;

(b) the provision, in any part of the authorised area other than the inner area, of entrances and exits for pedestrians, of protective walls and railings, or of vents and ventilation shafts.

(3) In exercising his powers under this Act the Minister of Transport shall secure the provision of such footways as appear to him required for avoiding inconvenience or danger to pedestrians and shall indicate any such footway on a map, which shall be deposited with the town clerk of the City of Westminster; and any footway so indicated shall be a highway maintainable by the council of that City.

(4) The Minister of Transport may by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, make regulations for the preservation of order in the places where the facilities mentioned in section one of this Act are provided and for the prevention of abuses of those facilities; and any person who contravenes, or fails to comply with, any such regulations shall be liable on summary conviction to a fine not exceeding five pounds.

Short title.

3. This Act may be cited as the Hyde Park (Underground Parking) Act, 1961.

CHAPTER 27

Carriage by Air Act, 1961

ARRANGEMENT OF SECTIONS

Section

1. Convention to have force of law.
2. Designation of High Contracting Parties.
3. Fatal accidents.
4. Limitation of liability.
5. Time for bringing proceedings.
6. Contributory negligence.
7. Power to exclude aircraft in use for military purposes.
8. Actions against High Contracting Parties.
9. Application to British possessions, etc.
10. Application to carriage by air not governed by Convention.
11. Application to Scotland.
12. Application to Northern Ireland.
13. Application to Crown.
14. Short title, interpretation and repeals.

SCHEDULES:

First Schedule—The Warsaw Convention with the Amendments made in it by The Hague Protocol.

Second Schedule—Repeals.